

Modification of Development Consent

Section 4.55 (1A) of the *Environmental Planning and Assessment Act 1979*

As delegate of the Minister for Planning and Public Spaces under delegation executed on 9 March 2022, I approve the modification of the development consent referred to in Schedule 1, subject to the conditions outlined in Schedule 2.



Catriona Shirley
A/Team Leader
Industry Assessments

Sydney

15 August 2025

File: EF25/10654

SCHEDULE 1

Development Consent

Development Consent: SSD-59416728 granted by the Minister for Planning and Public Spaces on 20 December 2024

For the following: Construction and operation of two, three-storey data centre buildings and a two-storey storage building with a maximum power consumption of 160.85 MW, including a high voltage substation, earthworks, internal access roads, car parking, tree removal and associated landscaping.

Modification 1

Modification Application: SSD-59416728-Mod-1

Modification to:

- Update the number of trees to be removed

Applicant: Cundall Johnston and Partners Pty Ltd

Consent Authority: Minister for Planning and Public Spaces

The Land: Lot 1 DP 864615, 3 Davis Road, Wetherill Park

SCHEDULE 2

The consent is modified as follows:

In the Definitions:

1. Insert the following definition in alphabetical order:

Modification Applications The documents assessing the environmental impacts of a proposed modification of this consent and any other information submitted with the following modification applications made under the EP&A Act:

a) SSD-59416728-Mod-1, Section 4.55(1A) modification application titled SECTION 4.55(1A) Modification Application to Modify SSD-59416728, prepared by Willowtree Planning and undated

In Schedule 2: Administrative Conditions

2. In Condition A2, renumber sub-clauses (d) and (e) as sub-clauses (e) and (f).
3. Insert new sub-clause (d) immediately after (c) as follows:

(d) in accordance with the Modification Assessments;
4. In Condition A4, delete the words "A2(e)" and replace with the words "A2(f)", wherever occurring.

In Appendix 1: Development Layout Plans

5. Delete the list of approved plans, and replace with the following list:

PROJECT NO.	DRAWING NO.	REV	DATE	TITLE
Architectural drawings prepared by Gensler Australia Pty Ltd				
SYD067	SYD067-CDL-00-XX-DR-A-1011	I	10/10/2024	SITE LAYOUT PLAN
SYD067	PC-2000	C	22/07/2024	GROUND FLOOR GENERAL ARRANGEMENT PLAN
SYD067	PC-2001	C	22/07/2024	GROUND LEVEL MEZZANINE GENERAL ARRANGEMENT PLAN
SYD067	PC-2002	C	22/07/2024	1 ST FLOOR GENERAL ARRANGEMENT PLAN
SYD067	PC-2003	C	22/07/2024	1 ST FLOOR MEZZANINE GENERAL ARRANGEMENT PLAN
SYD067	PC-2004	C	22/07/2024	2 ND FLOOR GENERAL ARRANGEMENT PLAN
SYD067	PC-2005	C	22/07/2024	2 ND FLOOR MEZZANINE GENERAL ARRANGEMENT PLAN
SYD067	PC-2006	C	22/07/2024	ROOF FLOOR GENERAL ARRANGEMENT PLAN
SYD067	PC-4000	C	22/07/2024	TYPICAL BUILDING ELEVATIONS – DC01, DC02 – 1 OF 2
SYD067	PC-4001	C	22/07/2024	TYPICAL BUILDING ELEVATIONS – DC01, DC02 – 2 OF 2

SYD067	PC-4200	C	22/07/2024	SUBSTATION ELEVATIONS
SYD067	PC-4300	C	22/07/2024	GUARDHOUSE & MV ROOM PLANS & ELEVATIONS
SYD067	PC-4400	C	22/07/2024	TAPE STORAGE BUILDING PLANS & ELEVATIONS
SYD067	PC-4500	C	22/07/2024	WATER SPRINKLER PUMP ROOM & TANK – PLANS, SECTION AND ELEVATIONS
SYD067	PC-5000	C	22/07/2024	SITE SECTIONS
SYD067	PC-5001	C	22/07/2024	BUILDING SECTIONS – LONG
SYD067	PC-5002	C	22/07/2024	BUILDING SECTIONS - SHORT
Landscape Plan prepared by Arcadia Pty Ltd				
PBT-ALA-XX-XX-DR-L-2000	M	27/08/2024	LANDSCAPE MASTERPLAN	
PBT-ALA-XX-XX-DR-L-3001	J	03/07/2024	GENERAL ARRANGEMENTS PLAN 01	
PBT-ALA-XX-XX-DR-L-3002	J	03/07/2024	GENERAL ARRANGEMENTS PLAN 02	
PBT-ALA-XX-XX-DR-L-3003	J	03/07/2024	GENERAL ARRANGEMENTS PLAN 03	
PBT-ALA-XX-XX-DR-L-3004	J	03/07/2024	GENERAL ARRANGEMENTS PLAN 04	
PBT-ALA-XX-XX-DR-L-6001	J	03/07/2024	SECTIONS	
PBT-ALA-XX-XX-DR-L-6002	J	03/07/2024	SECTIONS	